

EMPLOYMENT AGREEMENT

Apex Ventures Inc. & Sarah Thompson

Effective Date: June 1, 2026 | Governing Law: Delaware | Employee Location: California

Section 1. Parties and Position

This Employment Agreement ("Agreement") is entered into between Apex Ventures Inc., a Delaware corporation with its principal place of business at 500 Silicon Drive, San Jose, CA 95110 ("Company"), and Sarah Thompson, residing in San Francisco, CA 94102 ("Employee"). Employee is hired as Director of Product Management, commencing June 1, 2026, reporting to the Chief Product Officer.

Section 2. Compensation

- 2.1 Base Salary: Employee shall receive an annual base salary of \$185,000, payable bi-weekly, subject to applicable withholding.
- 2.2 Bonus: Employee is eligible for a discretionary annual bonus of up to 20% of base salary. Bonus payment is at the sole discretion of the Board and is not guaranteed.
- 2.3 Equity: Employee shall receive a stock option grant of 25,000 shares subject to a separate Option Agreement with a 4-year vesting schedule and 1-year cliff.

Section 3. Non-Compete

- 3.1 During Employment: Employee shall devote their full professional efforts to the Company and shall not engage in any competing activity during employment.
- 3.2 Post-Employment Non-Competition: For a period of TWO (2) YEARS following the termination of employment for any reason, Employee shall not, anywhere within the United States, directly or indirectly engage in, be employed by, consult for, or have any ownership interest in any business that competes with the Company's products or services.
- 3.3 This restriction is intended to be enforceable in all jurisdictions including California, notwithstanding any contrary state statute.
- 3.4 Liquidated Damages: Breach shall entitle the Company to \$250,000 per incident as liquidated damages, which the parties agree represents a reasonable estimate of harm.

Section 4. Non-Solicitation

For TWO (2) YEARS following termination, Employee shall not: (a) solicit, recruit, or encourage any Company employee to leave employment; (b) solicit or accept business from any customer or prospect of the Company, regardless of whether Employee had any personal contact with such customer. This restriction applies to all 50 U.S. states and all territories.

Section 5. Confidentiality and Trade Secrets

- 5.1 Employee acknowledges access to Confidential Information including source code, business plans,

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financial projections, customer data, and proprietary algorithms.

5.2 Employee agrees to maintain all Confidential Information in strict confidence permanently and in perpetuity, with no time limit following termination.

5.3 This obligation is one-directional: Employee is bound; Company has no reciprocal obligation.

5.4 No exception is provided for information that: (a) becomes publicly known through no act of Employee; (b) is independently developed by Employee; or (c) is rightfully disclosed to Employee by a third party.

Section 6. Intellectual Property Assignment

6.1 Assignment: Employee hereby assigns to the Company all right, title, and interest in and to any inventions, discoveries, developments, improvements, software, and works of authorship (collectively "Inventions") that Employee conceives, develops, or reduces to practice at any time during employment.

6.2 Scope: This assignment applies to ALL Inventions regardless of whether they were: (a) created during or outside business hours; (b) created using Company resources or entirely personal resources; (c) related or unrelated to the Company's business.

6.3 No Carve-Out: There is no carve-out for inventions made on personal time with no Company resources that are unrelated to the Company's business. Employee expressly waives any right under California Labor Code Section 2870 or similar statutes.

6.4 Prior Inventions: Employee represents they have no prior inventions to disclose.

Section 7. Termination and Severance

7.1 At-Will Employment: Employee's employment is at-will. Either party may terminate at any time, with or without cause, with or without notice.

7.2 Termination by Company Without Cause: No severance is payable regardless of Employee's tenure, role level, or performance. Employee is entitled only to salary earned through the last day of employment.

7.3 Termination by Employee: Employee shall provide 90 days advance written notice. If Employee fails to provide full notice, Employee forfeits all unvested equity and the Company may recover two months' salary as liquidated damages.

7.4 Definition of Cause: Cause includes, but is not limited to: underperformance as determined solely by the Company, strategic misalignment with Company direction, business necessity, or any other reason the Company deems sufficient.

Section 8. Dispute Resolution and Arbitration

8.1 Binding Arbitration: ALL disputes between Employee and Company, including claims under Title VII, ADA, ADEA, FMLA, FLSA, state wage and hour laws, and wrongful termination, shall be resolved exclusively through binding arbitration.

8.2 Costs: Employee shall pay ALL arbitration fees and costs, including the arbitrator's hourly rate and administrative fees, regardless of who initiates the proceeding.

8.3 Class Action Waiver: Employee waives the right to bring or participate in any class action, collective action, or representative action against the Company.

8.4 Company Court Access: Notwithstanding Section 8.1, the Company retains the right to seek injunctive

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relief in any court of competent jurisdiction without prior arbitration.

8.5 No Appeal: The arbitrator's award shall be final and non-appealable.

Section 9. Limitation of Liability

9.1 Company Liability Cap: The Company's maximum aggregate liability to Employee for any and all claims arising under or related to this Agreement shall not exceed \$500 (five hundred U.S. dollars).

9.2 Employee Liability: No cap applies to Employee's liability to the Company. Employee may be held liable for the full extent of any damages caused by breach.

9.3 Consequential Damages Waiver: Employee waives the right to seek consequential, incidental, punitive, or special damages from the Company.

Section 10. Indemnification

10.1 Employee Indemnification: Employee shall indemnify, defend, and hold harmless the Company and its officers, directors, employees, and agents from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising from or related to: (a) any act or omission of Employee; (b) any breach of this Agreement; (c) Employee's negligence.

10.2 No Reciprocal Indemnification: The Company has no indemnification obligation to Employee under this Agreement.

10.3 No Cap: Employee's indemnification obligation is uncapped and unlimited.

Section 11. Governing Law

This Agreement shall be governed by the laws of the State of Delaware without regard to conflict of law principles. Any court proceedings (including Company's injunctive relief rights) shall be brought exclusively in the state or federal courts of Delaware. Employee consents to personal jurisdiction in Delaware.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Apex Ventures Inc.

By: _____

Name: Michael Chen

Title: Chief Executive Officer

Sarah Thompson

Signature: _____

Date: _____